

last mentioned day until the present time the said C. D. has greatly misconducted himself in the said business by removing the books of the co-partnership from the shop or counting-house of the said firm, and denying your orator or debarring him from access thereto; by discharging the clerks and servants of the said firm, and engaging others in his own interest in their room; by making false entries in the said books, or improperly keeping the same; all which was done with the view and has had the effect of excluding your orator from his due share in the management of the said business; by using the name of the firm for his own private purposes, and applying the moneys of the partnership to his own individual use: that there is nothing in the said articles, or in the said agreement, to justify such conduct; and your orator has made frequent applications to the said C. D. to desist therefrom, and to act in accordance with the said agreement and with his duty as a partner, but without effect; on which account your orator on the _____ day of _____ gave notice to the said defendant that the said partnership should be dissolved from the _____ day of _____. To the end therefore that the said partnership may be dissolved, and that the accounts of the said business may be taken from the commencement thereof, and the affairs thereof wound up and adjusted, and that your orator may have (*such further relief, &c.*), may it please, &c.

(*Pray subpoena.*)

Bill to stay waste.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that your orator is and has been, from before the acts hereinafter complained of until the present time, seised in fee simple (*or in tail, or for life in possession, or remainder expectant upon the determination of an estate for the life of, &c., under and by virtue of an indenture of settlement dated, &c., or possessed for the remainder of a term of _____ years, under and by virtue of an indenture of demise, dated, &c., and made, &c.*) of lot number _____; and C. D., the defendant hereinafter named, is in possession of the said lot, as tenant, for a term of _____ years (*or from year to year, or at will*) of your orator, under and by virtue of an indenture of demise (*or an agreement, dated, &c., and made, &c.*) between your orator, (*or E. F. deceased, whose estate has come to your orator by descent, or devise, or purchase, or under and by virtue of his last will, dated, &c.*) and the said

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To stay waste.